H.B. 6, 2026.]

RESEARCH AMENDMENT BILL, 2026

MEMORANDUM

This purpose of the Bill is to provide for the amendment of the Research Act [*Chapter 10:22*]; to provide for alignment with the Constitution; to provide for alignment with the Public Entities Corporate Governance Act [*Chapter 10:31*]; to provide for the establishment of the Research Fund.

In more detail, the Bill provides as follows:

Clause 1

This clause amends the long title.

Clause 2

This clause inserts a Preamble.

Clause 3

This clause amends the short title.

Clause 4

This clause provides for definitions that are used throughout the Bill.

Clause 5

This clause inserts a new clause addressing the applicability of the Act.

Clause 6

This clause provides for the establishment of the Research Authority.

Clause 7

This clause provides for the establishment and composition of the Board of the Authority.

Clause 8

This clause provides for the repeal of sections 5, 7, 8, 9 and 12 of the principal Act.

Clause 9

This clause provides for the tenure and conditions of office of appointed Board members.

Clause 10

This clause provides for the filling of vacancies on the Board.

Clause 11

This clause provides for remuneration and allowances of the Board and its committees.

Clause 12

This clause introduces a new Part, after Part II, to establish the National Research and Development Funding Target. Under this provision, the Government undertakes to ensure, within the shortest practicable timeframe, that at least one percent of Zimbabwe's Gross Domestic Product (GDP) is allocated annually to research and development.

Clause 13

This clause amends the functions of the Authority, to provide for the regulation of research councils and to provide for the formulation and implementation of a national research policy.

Clause 14

This clause introduces new Parts after Part III, providing for the appointment of the Chief Executive Officer and staff. It also establishes the Fund of the Research Council and sets out provisions for its administration.

Clause 15

This clause deals with the appointment of an internal auditor.

Clause 16

This clause provides for the auditing of books of accounts.

Clause 17

This clause amends section 24 of the Principal Act by inserting new subsections on establishment of research councils and research institutes.

Clause 18

This clause adds more areas which may be regulated by the Minister by way of statutory instrument.

Clause 19

This clause introduces a Second Schedule to the Act addressing provision relating to the Board and its committees

BILL

AN Act to establish the Research Authority of Zimbabwe and to confer on the Authority functions and powers relating to the promotion, direction, supervision, regulation and co-ordination of research; to provide for the establishment of research councils and research institutes and for the control of such research councils and research institutes by the Authority; to provide for registration of foreign researchers; to provide for domestic incorporation and implementation of the Lagos Plan of Action (1980) and the SADC Protocol on Science, Technology and Innovation (2008) to the extent specified in this Act; and to provide for matters connected with or incidental to the foregoing.

ENACTED by the Parliament and the President of Zimbabwe.

1 Amendment of long title in Cap. 10.22

The long title is amended by the repeal and substitution of—

2 Insertion of Preamble in Cap. 10.22

The principal Act is amended by the insertion of the following—

"WHEREAS, in Lagos, Nigeria in April 1980, the Organisation of African Unity adopted the Lagos Plan of action for the Economic Development of

Printed by the Government Printer, Harare

Africa (1980-2000) committing its members, among other things to "demonstrate their political will and their commitment to improving the terms of trade of their government and peoples, member states are urged, within the coming decade to aim at gradually reaching a target of mobilising, at the domestic level a one *per centum* of their Gross Domestic Product (GDP) for the development of their scientific and technological capabilities";

AND WHEREAS, in Sandton, South Africa on the 17th of August, 2008, the Southern African Development Community (SADC) bound its members under the terms of the Protocol on Science, Technology and Innovation, 'to intensify efforts to attain at least one *per centum* of Gross Domestic Product (GDP) expenditure on research and development by 2010";

AND WHEREAS, the 23rd Meeting of the African Union Heads of State and Government Summit held at Malabo, Equatorial Guinea in 2014, adopted the Science, Technology and Innovation Strategy for Africa (STISA, 2024) under which the members committed to the statement that "each Member State is encouraged to take concrete actions to allocate at least one *per centum* of GDP to research and development to ensure that Africa maximizes ownership and responsibility for its own developmental path";

AND WHEREAS, in September 2024, at Accra, Ghana, the African Heads of Research Councils observed that the funding commitment for STISA 2034 reflects a renewed continental push to strengthen Africa Science, Technology and Innovation (STI) ecosystem;

AND WHEREAS, in February, 2025 at Addis Ababa, Ethiopia, the African Union Heads of State and Government recommitted to the 2014 goal of allocating at least one *per centum* GDP to research and development;

NOW THEREFORE, be it enacted by the President and Parliament of Zimbabwe as follows—"

3 Amendment of section 1 of Cap. 10:22

Section 2 ("Short title") is repealed and substituted with the following—

"1 Short Title

This Act may be cited as the Research Authority Act [*Chapter 10:22*]"

4 Amendment of section 2 of Cap. 10:22

Section 2 ("Interpretation") of the Research Act [*Chapter 10:22*] (hereinafter referred to as the principal Act) is amended by the deletion of the definitions of "research council", "research institute" and "secretariat" and substitution of the following definition Bills—

""Board" means a Board established in terms of section 4;

"research council" means a research council established in terms of section 24 or any body established in terms of any law, which promote, direct, supervise, co-ordinate and regulate research institutes;

"research institute" means a research institute established in terms of section 24 or any body which conducts research;

"secretariat" means the chief executive officer and staff of the Authority."".

5 Insertion of new section in Cap. 10:22

The principal Act is amended by the insertion of a new section after section 2—

"2A Application of Act in relation to other laws

If any other law or section of an Act relating to research is in conflict or inconsistent with this Act, this Act shall prevail.".

6 Amendment of section 3 of Cap 10:22

The principal Act is amended by the repeal of section 3 and substitution with—

"3 Establishment of Research Authority of Zimbabwe

There is hereby established an Authority to be known as the Research Authority of Zimbabwe, which shall be a body corporate capable of suing and being sued in its own name and, subject to this Act, of performing all acts that bodies corporate may by law perform."

7 Amendment of section 4 of Cap. 10:22

Section 4 ("Composition of Council") of the principal Act is repealed and substituted with the following—

"4 Establishment and composition of Board of Authority

(1) There is hereby established a Board which shall, subject to this Act, control and manage the operations of the Authority.

(2) The Board shall consist of not fewer than seven and not more than eleven members appointed by the Minister after consultation with the President.

(3) Of the members appointed in terms of subsection (2)—

(a) there shall be persons each with knowledge, experience and qualification in science, engineering, social sciences and humanities, agriculture, national security;

(b) one shall be an expert in Information Communication Technology;

(c) one shall be an expert in human resources management; and

(d) one shall be a legal practitioner registered in terms of the Legal Practitioners Act [*Chapter 27:07*];

(e) one shall be a person registered in terms of Public Accountants and Auditors Act [*Chapter 27:12*]; and

(f) one shall be a Ministry representative appointed by the Minister.

(4) The Minister shall appoint one member as chairperson of the Board and one member as vice-chairperson of the Board who shall be of the opposite gender to the chairperson.

(5) The Minister shall, in appointing the persons referred in subsections (3) and (4), take cognisance of the provisions of sections 17 and 18 of the Constitution.".

8 Repeal of sections 5, 7, 8, 9 and 12 of Cap 10:22

Sections 5, 7, 8, 9 and 12 of the principal Act are hereby repealed.

9 Amendment of section 6 of Cap. 10:22

Section 6 ("Tenure and conditions of office of members of Council") of the principal Act is repealed and substituted with the following—

"6 Tenure and conditions of office of Board members

(1) No person shall be appointed as a member of the Board for a term longer than four years, and the appointment may be renewed for only one further such term.

(2) No person shall be re-appointed to the Board if he or she has already served on the Board for one or more periods, whether consecutive or not, amounting in the aggregate to eight years.".

10 Amendment of section 8 of Cap. 10:22

Section 8 ("Filling of vacancies on Council") of the principal Act is repealed and substituted with the following—

"8 Filling of vacancies on Board

On the death of or the vacation of office by, a member, the Minister shall appoint a person to fill the vacancy within ninety days for a term not exceeding four years.".

11 Amendment of section 15 of Cap. 10:22

Section 15 ("Remuneration and allowances of members of Council and committees") of the principal Act is repealed and substituted with the following—

" 15 Remuneration and allowances of members of Board and committees

Members of the Board and committees of the Board, other than members of the secretariat, shall be paid from the funds of the Authority—

(a) such remuneration, if any, as the Minister after consultation with the Minister responsible for finance after consultation with the Minister, may from time-to-time fix for such members generally; and

(b) such allowances, if any, as the Minister after consultation with the Minister responsible for finance, may from time-to-time fix to meet any reasonable expenses incurred by such members in connection with the business of the Authority.".

12 Insertion of Part in Cap.10:22

The principal Act is amended by the insertion of the following Parts after Part II—

"PART IIA

NATIONAL RESEARCH AND DEVELOPMENT FUNDING TARGET

15A Not less than 1 per centum of Gross Domestic Product to be committed to research

The Government commits itself to progressively in the least time practicable secure that at least one *per centum* of the Gross Domestic Product (GDP) of Zimbabwe in any year is applied to research and development through its own agency and the agency of other actors in the public and private sectors.

15B Minister's policy directive to Authority setting research priorities

(1) No later than three months after the commencement of the Research (Amendment) Act 2026, the Minister, having consulted the Cabinet, shall issue to the Authority a policy directive setting forth the research priorities informed by national interests, which policy directive shall in turn inform the Authority in formulating the preliminary National Research Strategic Plan and the final National Research Strategic Plan referred to in section 15D.

(2) In addition to funding for specific or sectoral areas of research, the Minister in his or her policy directive must also direct the Authority to make provision in its plans for generic areas such as—

(a) research capacity building; and

(b) research infrastructural development.

15C Mechanism to achieve target

(1) It is the task of the Authority in consultation with the Minister to devise the following plans, not more than three years from the date of the issuance of the policy directive under section 15B—

(a) the draft preliminary National Research Strategic Plan (to be submitted to the Minister not more than six months after the issuance of the policy directive under section 15B) outlining strategies to achieve the objective specified in section 15A and incorporating an ambition to secure that not less than 0,2 *per centum* of that target shall be achieved no later than three years from the date of commencement of the Research Amendment Act 2026;

(b) a final National Research Strategic Plan covering a period of not more than five years (to be submitted to the Minister not more than twelve months after the issuance of the policy directive under section 15B) outlining strategies to achieve the objective specified in section 15A and incorporating the ambition to achieve that target no later than the end of the plan period.

(2) The Minister shall consider the final National Research Strategic Plan submitted to him or her by the Authority, with a view to submitting it to Cabinet for adoption or otherwise no later than three months from the date of its formal submission to him or her; in the interim, the Minister may—

(a) agree to the same without amendments;

(b) agree to the same with specified amendments, in which event he or she will refer the amendments to the Authority for their input within a period specified by the Minister.

(3) The Minister having agreed to the final National Research Strategic Plan, as the case may be, shall without delay initiate the process for having the Plan in question considered at the next practicable meeting of the Cabinet for its adoption or otherwise."

13 Amendment of section 16 of Cap. 10:22

Section 16 ("Functions of Council") of the principal Act is amended—

(a) in subsection (1) by the insertion of ", regulation" after the word "supervision";

(b) in subsection (1)(f) by the insertion of "or national interest" after "public interest";

(c) in subsection (1)(g) by the repeal of subparagraph (i) and the substitution of –

"(i) the formulation and implementation of a national research policy;"

14 Insertion of new Parts in Cap. 10:22

The principal Act is amended by the insertion of new Parts after Part III as follows—

"PART IIIA

CHIEF EXECUTIVE OFFICER AND STAFF

17A Chief Executive Officer

(1) The Board, with the approval of the President shall appoint a Chief Executive Officer.

(2) The Chief Executive Officer shall be an *ex officio* member of the Board.

(3) The Chief Executive Officer shall hold office for such period, not exceeding five years and shall be eligible for re-appointment for only one further such term, subject to performance.

17B Functions of Chief Executive Officer

(1) The Chief Executive Officer shall be responsible for—

(a) developing and implementing a strategic plan for the Authority; and

(b) managing the utilisation of resources in line with policy priorities; and

(c) managing the day to day operations of the Authority; and

(d) interfacing with the Board and other relevant clients and stakeholders; and

(e) carrying out any duties that may be conferred on him or her by the Board.

(2) For the effective exercise of his or her functions the Chief Executive Officer shall be assisted by the members of the secretariat appointed by the Board.

17C Conduct of staff

The conduct of the secretariat shall be governed by the conditions of service as may be prescribed."

PART IIIB

ESTABLISHMENT OF RESEARCH FUND

17D Establishment of Fund

There is hereby established a Fund to be known as the Research Fund.

17E Object of Fund

The object of the Fund is to—

(a) promote the national interest through—

(i) research;

(ii) innovation; and

(iii) technological adaptation and adoption;

(b) provide the development of appropriate human resources for research; and

(c) fund such other activities as are necessary for research purposes.

17F Composition of Fund

The Fund shall also consist of—

(a) any moneys that may be payable to the Authority from moneys appropriated for that purpose by Act of Parliament; and

(b) fees and charges raised for services and facilities provided and other things done by the Authority; and

(c) any donations and grants made to the Fund by any person or authority or by any government of any country; and

(d) loans, which may be raised with the approval of the Minister in consultation with the Minister responsible for finance; and

(e) any other moneys that may vest in or accrue to the Authority, whether in the course of its operations or otherwise.

17G Disbursement of funds

Disbursements from the Fund must be in accordance with the priorities and objectives specified by the National Research Strategic Plan that is currently in force, and no specific research proposal in respect of which funding is sought from the Fund shall be approved by the Authority, unless it has first been vetted and endorsed by the appropriate research council."

Provided that where research is being carried out by an individual researcher who is not associated with any research institute, the Authority shall determine the appropriate method of vetting and endorsement.

"PART IIIC

ADMINISTRATION OF FUND

17H Administration of Fund

The Authority shall administer the Fund and open one or more banking accounts into which all moneys received on behalf of the Fund shall be paid and no money shall be withdrawn therefrom except by means of prevailing transaction methods signed by such persons as are authorised on that behalf by the Board.".

15 Amendment of section 21 of Cap. 10:22

Section 21 ("Appointment of auditors and audit of accounts of Council") of the principal Act is repealed and substituted with—

"21 Internal Auditor

(1) The Authority shall ensure that proper accounts and other records relating to such accounts are kept in respect of all the Authority's activities, funds and property, including such particular accounts and records as provided for by the Public Finance Management Act [*Chapter 22:*19] (No 11 of 2009).

(2) As soon as possible after the end of each financial year, the Authority shall prepare and submit to the Minister a statement of accounts in respect of that financial year or in respect of such other period as provided for by the Public Finance Management Act [*Chapter 22:*19] (No 11 of 2009).

(3) Section 80 of the Public Finance Management Act [*Chapter 22:19*] (No 11 of 2009), shall apply, with such changes as may be necessary, to the appointment of an Internal Auditor to the Authority in all respects as if the Authority were a Ministry or a department of a Ministry.

(4) The Authority shall apply its funds to the fulfilment of its functions and shall further observe public finance management principles established in terms of section 298 of the Constitution.".

16 Insertion of new section of Cap. 10:22

The principal Act is amended by the insertion of a new section after section 21—

"21A Audit of Authority's Accounts

(1) The Authority shall cause its books of accounts to be audited once a year.

(2) The accounts of the Authority shall be audited by the Auditor-General, who for that purpose shall have the functions conferred on him or her by sections 7 and 8 of the Audit Office Act [*Chapter 22:18*] (No 12 of 2009).

(3) Any person under the authority or supervision of the Authority who refuses to provide the Auditor-General with an explanation or information required by him or her for the purposes of an audit or knowingly provides the Auditor-General with a false explanation or information, or an explanation or information that the person has no grounds for believing to be true, shall be guilty of an offence and liable to a fine not exceeding level 6 or to imprisonment for a period not exceeding one year or to both such fine and such imprisonment.

17 Amendment of section 24 of Cap. 10:22

Section 24 ("Establishment of research councils and research institutes") of the principal Act is amended by the insertion of the following subsections—

"(5) No research council shall conduct research except through a research institute established and registered with such research council for that purpose.

(6) No research council shall operate without a research code of ethics relevant to its sector, which research code of ethics shall be approved and *gazetted* by the Minister in terms of this Act after consultation with the Authority.

(7) No person shall conduct research that infringes the rights of the public or cause harm to environment.

(8) Any person who contravenes subsection (7) shall be guilty of an offence and liable to a fine not exceeding level 14 or imprisonment for a period of one year or both such fine and such imprisonment."

18 Amendment of section 32 of Cap. 10:22

Section 32 ("Regulations") of the principal Act is amended by—

(a) the insertion of the following subparagraphs—

"(g) registration of research councils, research institutes and foreign researchers.

(h) harmonisation of procedures and processes conducted by research councils and institutes."

(b) the insertion of the following subsection after subsection (3)—(4) Regulations made under this section shall to the extent that they expressly so provide also govern particular research councils or research councils in general and particular research institutes and research institutes in general.

19 Insertion of a Second Schedule

The Principal Act is amended by the insertion of a new Schedule after the First Schedule—

"SECOND SCHEDULE

PROVISIONS RELATING TO BOARD AND BOARD COMMITTEES

Disqualification, resignation and vacation of Board member

1. (1) A person shall be disqualified for appointment as a member if he or she—

(a) has already served on that Board for one or more periods, whether consecutive or not, amounting in the aggregate to eight years;

(b) is a member of two other such Boards:

Provided that for the purposes of this subsection, a person who is a member of the boards of—

(i) a public entity that owns or controls another such entity; and

(ii) the public entity that is owned or controlled by the entity referred to in paragraph (a);

shall be regarded as being a member of only one board.

(c) is not a Zimbabwean citizen;

(d) is an unrehabilitated insolvent;

(e) is declared mentally unfit by a qualified medical practitioner;

(f) is a member of Parliament or of a regional council or local authority council; or

(g) within the period of five (5) years before the date of the proposed appointment, has been convicted of an offence and sentenced to a period of imprisonment without the option of a fine.

(2) A member may resign his or her appointment by giving the Minister a written resignation.

(3) The resignation takes effect on the day it is received by the Minister or, if a later day is specified in the resignation, on that later day.

(4) No member shall be dismissed or required to vacate his or her office unless—

(a) he or she has been guilty of conduct inconsistent with his or her membership of the entity; or

(b) he or she has become disqualified for appointment to the Board; or

(c) where he or she was appointed to the Board by virtue of having a particular qualification, he or she has ceased to have that qualification; or

(d) he or she has failed to comply with his or her conditions of service or with the provisions of his or her performance contract; or

(e) he or she whether individually or together with other members, has failed to draw up a strategic plan or to comply with its provisions or to attain any material objective set out in it; or

(f) he or she has been absent, without just cause and without leave of the Board or its Chairperson, from three or more consecutive meetings of the Board:

Provided that in any such case, the Minister shall be given at least seven days written notice of the intended dismissal or removal from office.

Meetings of Board

2. (1) The Chairperson of the Board shall ensure that the Board meets at least once every quarter.

(2) The Board may meet without a quorum for ninety (90) days after the number of members appointed to it ceased to constitute a quorum of the Board:

Provided that any decisions reached by the Board while its membership does not constitute a quorum shall cease to have effect after the ninety (90) day period unless they have been ratified by a meeting of the Board at which a quorum is present.

(3) At least once a year, the Board shall convene an Annual General Meeting, that is to say, a meeting to which—

(a) representatives of the Corporate Governance Unit; and

(b) representatives of the Ministry; and

(c) the Accountant-General; and

(d) the Auditor-General; and

(e) such other persons as may be prescribed;

are invited to attend and discuss the Board's operations and conduct during the previous financial year and its plans for the next financial year, and any other matters of mutual interest.

(4) At least twice a year, the Minister shall meet the Board, for the purpose of discussing the Board's compliance with its strategic plan, and any other matters related to promotion, direction, supervision, and co-ordination of research that may arise.

(5) Minutes of every meeting shall record accurately and fully the proceedings at the meeting and all decisions taken at the meeting and shall be entered in records kept for that purpose.

Disclosure of interest

3. (1) If a member of the Board—

(a) knowingly acquires or holds a direct or indirect pecuniary interest in any matter that is under consideration by the Board; or

(b) owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association of persons which results in private interests coming or appearing to come into conflict with his or her functions as a member; or

(c) knowingly acquires or holds a direct or indirect pecuniary interest in any matter that is or, to knowledge, is likely to be the subject-matter of a contract between the public entity and any other person; or

(d) knows or has reason to believe that any of the associates—

(i) has acquired or holds a direct or indirect pecuniary interest in any matter that (being a member) is under consideration by the Board, or that is, to his or her knowledge, likely to be the subject-matter of a contract between the Board and any other person; or

(ii) owns any property or has a right in property or a direct or indirect pecuniary interest in a company or association of persons which results in private interests coming or appearing to come into conflict with his or her functions as a member; or

(e) for any other reason, the private interests of a member come into conflict with functions as a member;

the member shall forthwith disclose the fact to the Board.

(2) A member referred to in subparagraph (1) shall take no part in the consideration or discussion of, or vote on, any question before the Board which relates to any interest, property or right referred to in that subsection."

SCHEDULE

MINOR AMENDMENTS TO RESEARCH ACT [*CHAPTER 10:22*]

Provision	Extent of amendment
Section 3	By the deletion of "Research Council" and the substitution of "the Research Authority".
Sections 10(1), 10(2), 11(1)-11(10), 12-15	By the deletion of "the Council" wherever it occurs and the substitution of "the Board".
Section 16(1) -16(3), 17(1) – 17(2), 18(a)-(b),19, 20(1)- (2), 21(1)-21(5), 21(6) (c) , 22(1)-22(2), 23(1), 23(1) (b), 23(2) – (3), 24(1)- 24(3), 25(2), 26(1), 26(2), 26(2)(a) (iii), 26(2)(b), 27(1) – 27(5), 27(6)(a)-(b), 28(1), 28(1) (b), 28(2)-(3), 28A(1), 28(2) (b), 28B(1)-28B(4), 28C(1) (c), 28C(2), 29(1)-29(3), 30(1)-30(4), 31, 31A, 32(1), Schedule (Section 17(1)	By the deletion of "the Council" wherever it occurs and the substitution of "the Authority".